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This is a fee motion brought by the City of West Hollywood following a successful summary judgment motion.

The issue in the case is an allegedly dangerous condition on public property. On summary judgment, the court

concluded that defendant had established that there was no triable issue of fact as to notice and therefore granted the motion over plaintiff's opposition. Judgment was entered in April and that ruling is now on appeal. West Hollywood,

however, is seeking recovery of its attorneys' fees, limited to the issue of causation. Its theory is that it asked

plaintiff to admit that there was no notice to the City through RFAs, but plaintiff denied the assertion. West

Hollywood says that plaintiff did that after the City had produced discovery showing that there was in fact no notice, but that it was nonetheless put to the burden and expense of proving up the matter in order to prevail. Code of Civil Procedure section 2033.420, states that where a party fails to admit a fact in an RFA and the other party later proves it, the court must award payment of reasonable expenses, including fees, unless it finds that the party failing to make the admission had a reasonable ground to believe that it would prevail on the matter or there is some other good reason for the failure to admit. Normally, courts do not allow this sort of motion where it is based on RFAs issued early on going to the fundamental issues in the case, for doing so would essentially convert the American rule into a loser pays rule. (Universal

Home Improvement, Inc. v. Robertson (2020) 51 Cal.App.5th 116.) But West Hollywood argues that such is not the case here. Rather, defendant claims,

it waited until after it had provided discovery to plaintiff. Therefore, it concludes, plaintiff knew the salient underlying facts establishing that the admission should be admitted, and accordingly there is no reason why the sanction ought not be awarded.

Unlike typical sanctions, this provision is not designed as a penalty. Instead, it is designed to reimburse a party for having to prove that which it should not have had to work to prove. (*City of Glendale v. Marcus Cable Associates* (2015) 235 Cal.App.4th 344.) That is what West Hollywood claims is being sought here. West Hollywood also notes that it seeks no fees for other aspects of the summary judgment motion or its work on the case, or for any fees incurred before the request was denied. The court notes that the burden of persuasion on such a motion lies with the party opposing the motion, not the party making it. (*Spahn v. Richards* (2021) 72 Cal.App.5th 1007.)

Here, plaintiff argues that it did have a reasonable belief that it would prevail on the notice question. A reasonable ground for the belief means a good faith objective belief, not just a hope or a roll of the dice. (*Association for Los Angeles Deputy Sheriffs v. Macias* (2021) 63 Cal.App.5th 1007.) Thus, the court agrees that this has two components. First, the plaintiff must actually believe that there is a ground to deny the request, and second that there must be an objective basis to so deny. An unreasonable but honest belief will not do it. (*Grace v. Mansourian* (2015) 240 Cal.App.4th 523.) On the other hand, a good faith and reasonable belief will be enough even if ultimately mistaken. (*Miller v. American Greeting Corp.* (2008) 161 Cal.App.4th 1055; *Orange County Water Dist. v. The Arnold Engineering Co.* (2018) 31 Cal.App.5th 96.) And the court emphasizes, the question is not whether there is a good faith belief that there is something out there somewhere; it must be a reasonable good faith belief that the party refusing to admit the request will in fact prevail on that question.

In this case, plaintiff retained an expert, Avrit. The court does not know when plaintiff obtained the expert, but the expert did supply a declaration in opposition to the motion and the court will at least assume that Avrit had been retained or consulted before the RFA response was sent. In Avrit's declaration, the expert testified that, in his opinion, the defendant knew or should have known of the dangerous condition; that is, that there was notice. Avrit's view was that the as built plans were not fully consistent with the actual project because the top group of panels were installed but not in the plans, and that is the surface upon which plaintiff slipped.

Avrit also contended that the actual slope exceeded the project plans such that the City should have known that there was a variance between the plans and the actual area. Avrit went on to declare that the Facilities and Landscape Maintenance Superintendent for the Department of Public Works had testified to power washing the surface and that in Avrit's view, it was more likely than not that the surface upon which plaintiff slipped had deteriorated and become smooth over time due to that and also wear and use, something he claimed the City should have known or did know. He went on to say that the City routinely had employees in the area, but the condition had not been corrected even though the defendant should have known that the surface was worn and needed repairs.

Where a request for admission involves a sophisticated analysis of technical issues, it is harder to obtain a 2033.420 penalty than in other instances because it is more reasonable that a party reasonably relied on the expert's view. Where that is the case, the motion for fees will only prevail where the reliance is unreasonable or where the evidence was fatally undermined by other facts of which the party knew or where the testimony would be inadmissible. Inherent in that is whether the expert has reasonable qualifications and experience to support the opinion, whether the methodology is reasonable, and whether the opinion is grounded in logic. That is not to say that any expert is enough. A sham expert or opinion, or a plainly unqualified expert is akin to no expert at all.

But where there is a reasonable, good faith belief that the expert's testimony can carry the day, that will defeat the motion. The Orange County case cited above provides a good benchmark. There, the trial court awarded sanctions under 2033.420 after the plaintiff failed to admit an RFA during discovery. The Court of Appeal reversed, finding an abuse of discretion as to certain RFAs (although not as to others). The court notes that in that case, the defense prevailed at a bench trial in that case, not summary judgment. But even so, the court there noted that requests that require expert opinion are treated differently than requests that do not, and that a denial is not improper just because the expert is not ultimately believed. So, while the court declined to find a per se rule that an expert's opinion will always shield a party from 2033.420 sanctions, it did so because it concluded that there are "limited circumstances" where even with an expert, the belief is unreasonable. The Orange County court concluded that reliance on the expert was not so unreasonable as to warrant an

award, even though the trial court (sitting as a trier of fact) found the expert's opinion to be insufficient. And one can understand the logic. Compare a request for admission stating "Admit that you were driving the car at the time of the accident." Presumably, that is a fact and a fact alone. It requires no deep analysis and no specialized knowledge. If the request is denied so that the other side has to depose the witnesses to the event and get the traffic camera footage, section 2033.420 is pretty easy to apply. Compare that to "Admit that Dr. Jones acted within the standard of care during the surgery." That will require the plaintiff to retain an expert and review many documents to determine what the standard of care was and whether Dr. Jones met it during the surgery. If that is denied, it is harder to claim that plaintiff should be forced to pay Dr. Jones's fees for failing to admit it, at least where plaintiff has an expert who says that Dr. Jones did not act within the standard of care.

The court recognizes that here, the defense is in a stronger position than the defense in Orange County because here Avrit's position was not rejected on a weighing of the evidence basis. But even so, the court needs to look back at the purpose of the statute. Requests for Admission were likely originally intended to get admissions of things that no one really disputed, like "Admit you signed the contract" or (like the above example) "Admit you were the driver of the car." They are facts that ought not to be in dispute and it is a waste of everyone's time and money to force a party to prove it up. However, in modern practice they are also used for a different purpose. Instead of admitting discrete facts, they are being used to force a denial of ultimate facts or conclusions.

"Admit you were reckless" or "Admit that you suffered no damage." Or, as in this case, "Admit that the CITY did not have actual notice of a DANGEROUS CONDITION at the SUBJECT SIDEWALK on the date of the SUBJECT INCIDENT" and "Admit that the CITY did not have constructive notice of a DANGEROUS CONDITION at the SUBJECT SIDEWALK on the date of the SUBJECT INCIDENT." The responses here included an objection that the request called for a legal conclusion and expert opinion (and certainly the latter is true), and that plaintiff lacked sufficient information to admit or deny.

While these sorts of RFAs are not improper, neither do they easily flow into the notion that failing to admit that your case is meritless leads to a

fee award should you not prevail.

The court believes that actual or constructive notice is the sort of thing upon which a party might well feel expertise is needed, and the court cannot say that in light of Avril's opinion there was not a reasonable good faith belief that plaintiff could prevail.

The question of notice is not like a normal fact question; it is an ultimate legal issue and it involves many considerations. (That would be different than, for example "Admit that the CITY received no prior complaints concerning the SUBJECT PROPERTY." If the City had already turned over the relevant database, or a declaration regarding such a lack, it might well be that the denial would not be in subjective good faith, and that is one of the building blocks toward an ultimate conclusion.

But that is not the issue here.)

The court's point is that the sanction is going to be a stronger tool when used to establish the basic facts rather than when used to establish an ultimate fact. There is a difference between "Admit that you were driving at 50 miles per hour when you hit defendant's car" and "Admit that you were negligent when you hit defendant's car"; or "Admit that defendant was stopped at the light when you hit defendant's car" and "Admit that you were negligent when you hit defendant's car." In each example, the first is a straightforward fact requiring no analysis or expertise. The defendant's car was stopped or it was not; the responding party was going 50 mph or not. Whether the various facts amounted to legal negligence is something to which the request can be made, but it is harder to fault the responding party for not conceding the case.

On balance, even though the City prevailed on summary judgment, the court's concern is that turning 2033.420 into a weapon that essentially requires a party to admit that the case has no merit or risk paying the other side attorneys' fees is too great.

To be sure, there will be outlier cases where the opinion is a sham or from an obviously unqualified person.

There are "experts" like that out there, and practitioners (and many courts) know who they are. Courts, though, out to be slow to require a plaintiff to concede the case even after discovery or risk paying attorneys' fees.

At least this court will be slow to impose such a sanction. The court notes that the Legislature could have, but did not, direct that where the defendant prevails on a contested motion for summary judgment, it should get fees, or at least where a party

unsuccessfully declares a fact disputed.

After all, the statement of undisputed facts are, essentially, the equivalent of an RFA; they are assertions of fact to which the other side must either admit (by agreeing the fact is undisputed) or dispute with evidence. But the Legislature did not do so. The court is aware that the analogy is not perfect and the fact that there are no fees for unsuccessfully opposing an MSJ does not mean that fees cannot be recovered under 2033.420—a different and independent statute. The court only notes that it is an interesting point and illustrates a general view on fees.

In any event, the court finds that plaintiff had a reasonable good faith belief that it would prevail on this issue. Therefore, the motion is DENIED.